

the Telegraph Acts, 1868–1869, and nothing in this Act shall affect any railway belonging to the said company, unless that railway is leased or worked by any of the railway companies referred to in the first proviso to section six of the Telegraph Act, 1878.

7.—(1) In this Act—

The expressions “telegraphic line,” “alteration,” and “altering” have the same meaning as in the Telegraph Act, 1878;

The expressions “street,” “public road,” “railway,” “canal,” and “land” have the same meaning as in the Telegraph Act, 1863, as amended by the Telegraph Act, 1892;

The expressions “railway company” and “canal company” respectively include the proprietors or lessees, or the directors or persons having the control of a railway or canal.

Interpretation
and notices.

26 & 27 Vict.
c. 112.
55 & 56 Vict.
c. 59.

(2) Section twelve of the Telegraph Act, 1878 (which relates to the printing, authentication, and service of notices and other documents), shall apply for the purposes of this Act as it applies for the purposes of that Act.

8. This Act may be cited as the Telegraph (Construction) Act, 1911, and may be cited with the Telegraph Acts, 1863 to 1911.

Short title.

CHAPTER 40.

An Act to provide for the appointment of two additional Commissioners in Lunacy and to transfer the power of making Vesting Orders from the Judge in Lunacy to the High Court.
[16th December 1911.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. The powers of the Judge in Lunacy under sections one hundred and thirty-five to one hundred and forty-three of the Lunacy Act, 1890, as amended by any subsequent enactment, to make such vesting and other orders as are in those sections mentioned shall except so far as they relate to lunatic mortgagees, not being also trustees, be transferred to, and, subject to rules of the Supreme Court, be exercisable by, the High Court, and, except as aforesaid, those sections as so amended shall have effect accordingly as if for references to the Judge in Lunacy there were substituted references to the High Court.

Transfer of
powers as to
vesting orders
from Judge in
Lunacy to
High Court.
53 & 54 Vict.
c. 5.

Short title.

2. This Act may be cited as the Lunacy Act, 1911, and the Lunacy Acts, 1890 to 1908, and this Act may be cited together as the Lunacy Acts, 1890 to 1911.

Appointment
of two additional Commis-
sioners.

3. The number of paid Commissioners in Lunacy shall be increased by two, and for that purpose the Lord Chancellor may appoint two persons to be Commissioners in Lunacy, and the provisions of the Lunacy Act, 1890, with respect to the qualification of Commissioners shall apply to any Commissioner appointed under this section.

CHAPTER 41.

An Act to enlarge the Remedies of Persons having claims for work done in connection with the stowing or discharging of ships' cargoes or the trimming of coal on board ships. [16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Power to
arrest ship
on claim for
work done
in stowing
cargo, &c.

1.—(1) If it is claimed that any sum is due to any person from the owners of a ship for work done at any place in the United Kingdom by that person in connection with the stowing or discharging of cargoes on board or from that ship, or the trimming of coal on board that ship, and that ship is at any time found in any place in England or Ireland or within three miles of the coast thereof, a judge of any court of record in England or Ireland may, upon its being shown to him by any person applying in accordance with rules of court that *prima facie* the claim against the owners is a good claim and that none of the owners reside in the United Kingdom, issue an order for the arrest of the ship.

(2) An order under this Act shall be directed to some officer of customs and excise, or some other officer named in the order, and shall require him to detain the ship until such time as satisfaction has been made by the owners, agent, master, or consignee thereof in respect of the claim, or until security, to be approved by the judge, has been given by them or him, to abide the event of any action, suit, or other legal proceeding that may be instituted in respect of the claim, and to pay all costs and damages that may be awarded thereon, and where any such order is made, the officer to whom the order is directed shall detain the ship accordingly.

(3) In any legal proceedings in relation to any such claim as aforesaid, the person giving security shall be made defendant,